

THE UNIVERSAL HOUSE OF JUSTICE

1993-01-24

dear bahá'í friend,

further to our letter of 14 November 1991, the universal house of justice has now completed its consideration of your letter of 21 September 147 .3

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1992–1993 • The Holy Year

171991, in which you raised a number of questions pertaining to violence and to the sexual abuse of women and children. we have been instructed to provide the following response to your questions.

As you know, the principle of the oneness of mankind is described in the bahá'í writings as the pivot round which all the Teachings of bahá'u'lláh revolve. it has widespread implications which affect and remold all dimensions of human activity. it calls for a fundamental change in the manner in which people relate to each other, and the eradication of those age-old practices which deny the intrinsic human right of every individual to be treated with consideration and respect.

within the family setting, the rights of all members must be respected.

'Abdu'l-bahá has stated:

The integrity of the family bond must be constantly considered and the rights of the individual members must not be transgressed. The rights of the son, the father, the mother—none of them must be trans-gressed, none of them must be arbitrary. just as the son has certain

obligations to his father, the father, likewise, has certain obligations to his son. The mother, the sister and other members of the household have their certain prerogatives. All these rights and prerogatives must be conserved. . . .

149-1

The use of force by the physically strong against the weak, as a means of imposing one's will and fulfilling one's desires, is a flagrant transgression of

the bahá'í Teachings. There can be no justification for anyone compelling another, through the use of force or through the threat of violence, to do that to which the other person is not inclined. 'Abdu'l-bahá has written, "o ye lovers of god! in this, the cycle of Almighty god, violence and force, constraint and oppression, are one and all condemned."149-2 let those who, driven by their passions or by their inability to exercise discipline in the control of their anger, might be tempted to inflict violence on another human being be mindful of the condemnation of such disgraceful behavior by the revelation of bahá'u'lláh.

149-1. pup , pp. 232–33.

149-2. Sw Ab, no. 129.11.149.2

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18Among the signs of moral downfall in the declining social order are the high incidence of violence within the family, the increase in degrading and cruel treatment of spouses and children, and the spread of sexual abuse. it is essential that the members of the community of the greatest Name take utmost care not to be drawn into acceptance of such practices because of their prevalence. They must be ever mindful of their obligation to exemplify a new way of life distinguished by its respect for the dignity and rights of all people, by its exalted moral tone, and by its freedom from oppression and from all forms of abuse.

consultation has been ordained by bahá'u'lláh as the means by which agreement is to be reached and a collective course of action defined. it is applicable to the marriage partners and within the family, and indeed, in all areas where believers participate in mutual decision making. it requires all participants to express their opinions with absolute freedom and with-out apprehension that they will be censured or their views belittled; these prerequisites for success are unattainable if the fear of violence or abuse is present.

A number of your questions pertain to the treatment of women, and are best considered in light of the principle of the equality of the sexes which is set forth in the bahá'í Teachings. This principle is far more than the enunciation of admirable ideals; it has profound implications in all aspects

of human relations and must be an integral element of bahá'í domestic and community life. The application of this principle gives rise to changes in habits and practices which have prevailed for many centuries. An example of this is found in the response provided on behalf of Shoghi effendi to a question whether the traditional practice whereby the man proposes marriage to the woman is altered by the bahá'í Teachings to permit the woman to issue a marriage proposal to the man; the response is, "The guardian wishes to state that there is absolute equality between the two, and that no distinction or preference is permitted. . . ." with the passage of time, during which bahá'í men and women endeavor to apply more fully the principle of the equality of the sexes, will come a deeper understanding of the far-reaching ramifications of this vital principle. As 'Abdu'l-b ahá has stated, "until the reality of equality between man and woman is fully established and attained, the highest social development of mankind is not possible."

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149-3. pup , p. 105.149.5

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ment be given to bahá'í women and girls to participate in greater measure in the social, spiritual and administrative activities of their communities, and has appealed to bahá'í women to arise and demonstrate the importance of their role in all fields of service to the f aith.

for a man to use force to impose his will on a woman is a serious transgression of the b ahá'í Teachings. 'Abdu'l-b ahá has stated that:

The world in the past has been ruled by force, and man has dominated over woman by reason of his more forceful and aggressive qualities both of body and mind. but the balance is already shifting; force is losing its dominance, and mental alertness, intuition, and the spiritual qualities of love and service, in which woman is strong, are gaining ascendancy.149-4

bahá'í men have the opportunity to demonstrate to the world around them

a new approach to the relationship between the sexes, where aggression and the use of force are eliminated and replaced by cooperation and con-

questions addressed to it that, in a marriage relationship, neither husband nor wife should ever unjustly dominate the other, and that there are times

when the husband and the wife should defer to the wishes of the other,

if agreement cannot be reached through consultation; each couple should determine exactly under what circumstances such deference is to take place.

from the pen of bahá'u'lláh himself has come the following statement

on the subject of the treatment of women:

The friends of god must be adorned with the ornament of justice,

equity, kindness and love. As they do not allow themselves to be the object of cruelty and transgression, in like manner they should not allow such tyranny to visit the handmaidens of god. he, verily, spea-

keth the truth and commandeth that which benefiteth his servants

and handmaidens. he is the protector of all in this world and the

next.

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149-4. lg, no. 2079.

149-5. cc 2:2145.149.8

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149.10a

m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

20No bahá'í husband should ever beat his wife, or subject her to any form of cruel treatment; to do so would be an unacceptable abuse of the marriage relationship and contrary to the Teachings of bahá'u'lláh.

The lack of spiritual values in society leads to a debasement of the attitudes which should govern the relationship between the sexes, with women being treated as no more than objects for sexual gratification and being denied the respect and courtesy to which all human beings are entitled.

bahá'u'lláh has warned: "They that follow their lusts and corrupt inclina-

tions, have erred and dissipated their efforts. They, indeed, are of the lost." believers might well ponder the exalted standard of conduct to which they

are encouraged to aspire in the statement of bahá'u'lláh concerning his

"true follower," that: "And if he met the fairest and most comely of women, he would not feel his heart seduced by the least shadow of desire for her

beauty. Such an one, indeed, is the creation of spotless chastity. Thus instructeth you the pen of the Ancient of days, as bidden by your lord, the Almighty, the All-bountiful.”

149-6

one of the most heinous of sexual offenses is the crime of rape. when a believer is a victim, she is entitled to the loving aid and support of the members of her community, and she is free to initiate action against the perpetrator under the law of the land should she wish to do so. if she becomes pregnant as a consequence of this assault, no pressure should be brought upon her by the bahá'í institutions to marry. As to whether she

should continue or terminate the pregnancy, it is for her to decide on the course of action she should follow, taking into consideration medical and other relevant factors, and in the light of the bahá'í Teachings. if she gives

birth to a child as a result of the rape, it is left to her discretion whether to seek financial support for the maintenance of the child from the father; however, his claim to any parental rights would, under bahá'í law, be called into question, in view of the circumstances.

The guardian has clarified, in letters written on his behalf, that “The bahá'í faith recognizes the value of the sex impulse,” and that “The proper use of the sex instinct is the natural right of every individual, and it is precisely for this very purpose that the institution of marriage has been established.”

149-7 in this aspect of the marital relationship, as in all others, mutual

149-6. gwb, nos. 136.6, 60.3.

149-7 . lg, no. 1156.149.11

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149.13

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21consideration and respect should apply. if a bahá'í woman suffers abuse or is subjected to rape by her husband, she has the right to turn to the Spiritual Assembly for assistance and counsel, or to seek legal protection. Such abuse would gravely jeopardize the continuation of the marriage, and could well lead to a condition of irreconcilable antipathy.

you have raised several questions about the treatment of children. it is clear from the bahá'í writings that a vital component of the education of

children is the exercise of discipline. Shoghi effendi has stated, in a letter written on his behalf about the education of children, that:

discipline of some sort, whether physical, moral or intellectual is

indeed indispensable, and no training can be said to be complete and fruitful if it disregards this element. The child when born is far from

being perfect. it is not only helpless, but actually is imperfect, and

even is naturally inclined towards evil. he should be trained, his natu-

ral inclinations harmonized, adjusted and controlled, and if necessary

suppressed or regulated, so as to ensure his healthy physical and moral

development. b ahá'í parents cannot simply adopt an attitude of non-

resistance towards their children, particularly those who are unruly

and violent by nature. it is not even sufficient that they should pray

on their behalf. rather they should endeavor to inculcate, gently and

patiently, into their youthful minds such principles of moral conduct and initiate them into the principles and teachings of the cause with

such tactful and loving care as would enable them to become "true

sons of god" and develop into loyal and intelligent citizens of his

kingdom. . . .

149-8

while the physical discipline of children is an acceptable part of their

education and training, such actions are to be carried out "gently and pa-tiently" and with "loving care," far removed from the anger and violence

with which children are beaten and abused in some parts of the world. To treat children in such an abhorrent manner is a denial of their human rights, and a betrayal of the trust which the weak should have in the strong in a

bahá'í community.

149-8. lg, no. 510.149.14

149.14a

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m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

22it is difficult to imagine a more reprehensible perversion of human conduct than the sexual abuse of children, which finds its most debased form in incest. At a time in the fortunes of humanity when, in the words of the guardian, "The perversion of human nature, the degradation of human

conduct, the corruption and dissolution of human institutions, reveal them-selves . . . in their worst and most revolting aspects,” and when “the voice of human conscience is stilled,” when “the sense of decency and shame is obscured,”

149-9 the bahá'í institutions must be uncompromising and vigilant in their commitment to the protection of the children entrusted to their care, and must not allow either threats or appeals to expediency to divert them from their duty. A parent who is aware that the marriage partner is subjecting a child to such sexual abuse should not remain silent, but must take all necessary measures, with the assistance of the Spiritual Assembly or civil authorities if necessary, to bring about an immediate cessation of such grossly immoral behavior, and to promote healing and therapy.

bahá'u'lláh has placed great emphasis on the duties of parents toward their children, and he has urged children to have gratitude in their hearts for their parents, whose good pleasure they should strive to win as a means of pleasing god himself. however, he has indicated that under certain circumstances, the parents could be deprived of the right of parenthood as to legislate on this matter. it has decided for the present that all cases should be referred to it in which the conduct or character of a parent appears to render him unworthy of having such parental rights as that of giving consent to marriage. Such questions could arise, for example, when a parent has committed incest, or when the child was conceived as a consequence of rape, and also when a parent consciously fails to protect the child from flagrant sexual abuse.

As humanity passes through the age of transition in its evolution to a world civilization which will be illuminated by spiritual values and will be distinguished by its justice and its unity, the role of the bahá'í community is clear: it must accomplish a spiritual transformation of its members, and must offer to the world a model of the society destined to come into being through the power of the revelation of bahá'u'lláh. membership in the

bahá'í community is open to all who accept bahá'u'lláh as the manifestation of god, and who thereupon embark on the process of changing their

149-9. wob, p. 187 .149.16

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2conduct and refining their character. it is inevitable that this community

will, at times, be subject to delinquent behavior of members whose actions do not conform to the standards of the Teachings. At such times, the institutions of the faith will not hesitate to apply bahá'í law with justice and fairness in full confidence that this divine law is the means for the true happiness of all concerned.

however, it should be recognized that the ultimate solution to the problems of humanity lies not in penalties and punishments, but rather in spiritual education and illumination. 'Abdu'l-bahá has written:

it is incumbent upon human society to expend all its forces on the education of the people, and to copiously water men's hearts with the sacred streams that pour down from the realm of the All-merciful, and to teach them the manners of heaven and spiritual ways of life, until every member of the community of man will be schooled, re-fined, and exalted to such a degree of perfection that the very committing of a shameful act will seem in itself the direst infliction and most agonizing of punishments, and man will fly in terror and seek refuge in his god from the very idea of crime, as something far harsher and more grievous than the punishment assigned to it.

it is toward this goal that the community of the greatest Name is striving, aided and reinforced by the limitless power of the holy Spirit.

with loving bahá'í greetings,

Department of the Secretariat

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Publication of English Translation
of the Kitáb-i-Aqdas

[signed: The Universal House of Justice]